

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Guild Preliminary-Injunction Motion and Memorandum

Filed January 5, 2026

Plaintiff Piedmont Booksellers Guild moves under Federal Rule of Civil Procedure 65 for a preliminary injunction protecting its six announced 2026 Cedar Commons book fairs from the speaker-specific burdens of Norvale Ordinance N-2025-18. The Guild asks the Court to prevent the City, during this action, from making a paid author's appearance depend on a forty-five-day name-and-topic submission, the \$45 speaker assessment, or a condition not tied by written reasons to an actual operational feature of the event.

The requested relief would leave the City able to administer neutral reservations, lawful capacity rules, emergency-access requirements, loading windows, traffic measures, sanitation standards, insurance rules, and site-specific conditions supported by documented facts. The Guild will give the City its dates, hours, expected attendance, physical layout, presentation location and times as known, equipment information, on-site contact, and prompt notice of material logistical changes. It seeks protection for literary programming, not an exemption from safe park use.

The motion satisfies each requirement stated in *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7 (2008), and applied in the Fourth Circuit. Paid author readings are protected expression. Although the ordinance is facially viewpoint neutral, the City's legitimate interests concern crowd size, timing, layout, traffic, and resources; compensation, early identity disclosure, and a cumulative speaker charge do not fit those interests. The burdens already shape February invitations and spending. Lost presentations cannot be recreated, while tailored relief preserves all evidence-based safety authority.

Background and Immediate Dispute

The Guild is a nonprofit association of independent booksellers, small publishers, librarians, and readers. Since 2019 it has presented free public fairs at Cedar Commons. A usual fair includes eighteen to twenty-eight seller tables and four to seven authors who receive modest honoraria for readings, discussions, and audience questions. Members sell books, but no admission or program ticket is charged. The literary sessions are an intentional part of the Guild's mission rather than incidental advertising chatter.

The announced 2026 Saturdays are February 14, April 11, June 13, August 8, October 10, and December 12. The Guild can settle its general footprint well ahead of each date. Author rosters are more fluid because release dates, regional travel, sponsorship, illness, and caregiving affect availability. Some valuable appearances have historically been arranged in the last month. A substitute reading in the same place and time ordinarily does not change tent placement or total attendance, though the Guild accepts that a different format or larger expected audience may require review.

The record is peaceful but not frictionless. No violence has been attributed to a Guild fair. Two prior dates involved minor medical assistance, one for heat-related dizziness and another for a curbside fall. Staff and volunteers have handled routine unloading delay, boxes near an access route, and temporary crowding around the fountain and Market Lane. Those facts justify practical coordination. They do not show that payment or literary subject caused an incident.

Ordinance N-2025-18 nevertheless makes compensated speaking the coverage trigger. Each event requires a separate application at least forty-five days in advance, the name, topic, and time of every paid speaker, \$240 plus \$45 per speaker, and possible conditions or denial for documented crowd, traffic, or municipal-resource risks. Nonspeaking vendors remain outside these added provisions. Late changes may be reviewed, but acceptance and decision timing are not assured.

Governing Preliminary-Injunction Standard

A movant must clearly establish likely success on the merits, likely irreparable harm in the absence of preliminary relief, that the equities favor relief, and that an injunction serves the public interest. *Winter*, 555 U.S. at 20; *Pashby v. Delia*, 709 F.3d 307, 320–21 (4th Cir. 2013). The Guild does not ask the Court to use a sliding scale or treat a possible injury as enough. The present program decisions and the continuing ordinance permit a concrete assessment of every factor.

The Guild has standing through members who sell books, sponsor authors, contribute to fair costs, and participate in the regulated program. Those members face current economic and expressive choices; the challenged requirements apply to the Guild as organizer; and prospective relief requires no individualized damages calculation. The requested protection is germane to the association's purpose of presenting literature to the public. The dispute is fit for review even though no official has rejected an author for an objectionable viewpoint.

Ripeness does not require the Guild to submit an intentionally incomplete roster, incur every repeated charge, or wait until a February opportunity is lost. The filing cutoff operates automatically. The fee schedule fixes present cost. Section 7 states that a late change is not guaranteed and includes no binding decision deadline. The Guild's inability to offer a confirmed late invitation under those terms is a present planning injury, not a hypothetical future disagreement.

The City's interests deserve full weight. Safe pedestrian movement, vehicle circulation, emergency access, sanitation, and rational assignment of employees are significant governmental purposes. The constitutional question is whether the means chosen burden materially more speech than those purposes require and whether adequate alternatives remain. A content-neutral label does not eliminate that inquiry.

Paid Literary Presentations Are Protected Speech

An author does not lose First Amendment protection by accepting an honorarium, and an organizer does not lose it by selling books near a free reading. *Billups v. City of Charleston*, 961 F.3d 673 (4th Cir. 2020), confirms that compensated speaking in public places remains expression subject to constitutional protection. Readings, discussions, and questions communicate the author's words and invite exchange with listeners. They occupy the core of the activity the Amendment protects.

Cedar Commons is a public park used for community gatherings and expressive activity. The City may reserve space and regulate competing uses, but its control of the site does not permit an unnecessary licensing burden on speech. Under the familiar time, place, and manner framework, a content-neutral rule must serve a significant interest, be narrowly tailored, and preserve adequate channels. *Ward v. Rock Against Racism*, 491 U.S. 781 (1989). The government need not select the least restrictive imaginable rule, but it must demonstrate a meaningful fit.

The Guild does not rely on a claim of viewpoint hostility. The ordinance prohibits considering agreement with an author, and the early permit examples contain neutral written reasons. A brief description such as “novelist reading and questions” may be accepted without a script or political position. Those safeguards are important. They do not answer whether the City may attach a rigid deadline and escalating charge to paid speech when its asserted needs turn on other facts.

Nor does compensation supply an operational distinction sufficient by itself. It may help staff identify a program the organizer has arranged, but unpaid scheduled speakers also gather audiences, and paid speakers may draw very few people. Table sales and scheduled readings differ in timing and concentration; the City can ask directly whether any presentation is scheduled and what physical effects it is expected to have. The availability of that direct inquiry matters to tailoring.

The Speaker Trigger and Required Disclosures Lack a Sufficient Fit

The City's own materials identify the facts that affect its work: overall attendance, site dimensions, chair and tent placement, program time and duration, presentation format, equipment, loading, transit, emergency routes, and competing reservations. None depends on whether an author receives \$100, reimbursement, or nothing. A neutral form could request those logistical details for any organized audience session and omit a compensation-based burden.

The name requirement fixes an expressive participant before the Guild's ordinary invitation process has matured. Identity may help label a schedule entry, but a unique slot number would do the same. The topic requirement is limited by viewpoint protections, yet it still obliges an organizer to announce a subject forty-five days ahead. If staff need to know whether an activity uses chairs, sound, a demonstration table, or audience questions, a format field supplies the answer more accurately.

The City cannot justify the added burdens by pointing only to the general fact that presentations concentrate listeners. The Guild accepts that a timed gathering may differ from dispersed browsing. The missing connection is between that phenomenon and paid status, early identity, or a topic line. *Billups* requires evidence that the selected burden responds to the asserted problem, including serious consideration of substantially less restrictive measures. The legislative file itself recognizes that compensation is an imperfect predictor and that late literary schedules are common.

Written reasons do not cure a defective trigger. By the time reasons issue, the organizer has already faced the deadline, disclosures, and fee. And the broad categories of crowd, traffic, and municipal resources do not specify how much evidence warrants a condition or when a narrower adjustment must be chosen. The ordinance mentions less burdensome responses, but it gives no assured prompt path for a change that leaves all operational facts intact.

Deadline, Amendment Uncertainty, and Fees

The forty-five-day requirement falls most heavily where literary opportunity arises late. An author may join a regional tour, obtain publisher support, or become available after another engagement changes. The Guild can provide the event's stable footprint and update a schedule. The ordinance instead places the risk of delayed review on the organizer even when a proposed replacement occupies the same location, duration, format, and audience estimate. A discretionary possibility of amendment is not an adequate channel when no response time or materiality rule protects the invitation.

The fee structure compounds the problem. A six-author fair owes \$510: the \$240 base amount plus six \$45 additions. At the same speaker count over six dates, charges would total \$3,060. The legislative worksheet uses averaged administrative work, and City files do not isolate actual minutes for each paid speaker. Adding another name raises the bill even if that author replaces no crowd-related feature or is expected to attract fewer listeners than an unpaid program.

The Guild does not contend that government must process every park use for free. A properly measured charge for administration or an identified service may be valid. But a licensing fee for protected activity must not become a revenue device or float with an official's reaction to speech. See *Forsyth County v. Nationalist Movement*, 505 U.S. 123 (1992). Here uniformity prevents viewpoint pricing, but uniformity alone does not connect the per-speaker increment to cost actually occasioned by the event.

Alternative locations and unpaid appearances are inadequate. Cedar Commons supplies an established public audience and central access that another site may not replicate. Removing honoraria asks authors to subsidize the program and excludes those unable to donate time or travel. Presenting fewer authors is not another channel for the same expression; it is the injury. These choices do not save an unnecessarily broad regime.

Likely Irreparable Harm

The Guild faces likely harm before a final judgment could issue. The February 14 date requires immediate invitations, author commitments, transportation, inventory orders, advertising, and vendor decisions. The forty-five-day point arrived on December 31 while the roster remained incomplete. A writer asked to wait for an uncertain amendment decision may accept another engagement. A bookseller unable to predict the fair contribution may decline a table. Once the Saturday passes, neither damages nor a later declaration can recreate the exchange.

Courts treat the loss of First Amendment freedoms, even for a limited period, as irreparable because expression is time sensitive and cannot be fully valued after the fact. The injury here is not premised on suspected ideological censorship. A neutral rule can chill protected speech by making a timely program too expensive or uncertain. The Guild is already deciding which authors to invite and whether to reduce honoraria under the operative schedule.

The recurring dates reinforce rather than weaken immediacy. Every event has its own forty-five-day point, separate \$240 charge, and speaker increments. The April, June, August, October, and December programs will enter the same invitation cycle while this case proceeds. Passage of February would leave the same rule governing the same organizer. Preliminary relief therefore addresses an ongoing series rather than an isolated completed event.

The City may say injury is speculative because staff could approve each amendment. That response confirms the uncertainty. No binding provision tells the Guild when it will know or limits rejection to a material logistical change. Good-faith administration cannot restore an appearance lost while a request is pending. The Guild need not provoke a denial where the process itself produces the present burden.

Balance of Equities and Public Interest

The balance favors focused relief. Without it, the Guild may lose presentations, reduce author compensation, and shift cumulative charges to small sellers. Those choices cannot be undone after each fair. With it, the City retains direct authority over the physical conditions that its evidence identifies. The Guild is willing to preserve the service lane, observe a fixed unloading period, separate signing traffic, comply with lawful capacity, supply an emergency contact, and revise a layout for a documented date-specific concern.

The City's claimed injury from an injunction should be measured against its remaining tools. It can obtain presentation times, durations, formats, audience estimates, locations, equipment requests, and prompt updates. It can coordinate a traffic post when traffic evidence supports one and protect bus access or a conflicting reservation. Relief from paid-speaker identity, topic, and fee requirements does not require the City to approve an unsafe footprint or disregard a material change.

The Guild does not minimize the two medical calls or ordinary congestion. Those events support water planning, clear curbs, marked routes, and available contacts. They do not establish violence, speaker-caused disorder, or a need to price each compensated author. The public interest includes both safe use of municipal space and access to free literary speech. A carefully drawn injunction serves both values.

There is no public interest in enforcing a likely unconstitutional burden. Conversely, there would be a public cost if an order disabled ordinary safety rules. The requested line avoids that problem: regulate demonstrated operational effects, not the payment or early identity of the person speaking. If a proposed addition materially changes the expected audience, time, format, equipment, or site plan, the City may review and address that change on written, neutral grounds.

Requested Order

The Guild asks the Court to enjoin the City and those acting with it from enforcing against the Guild's announced 2026 Cedar Commons fairs the requirement that a paid author be named with a topic forty-five days before the event, the \$45 paid-speaker charge, and any denial or condition resting solely on paid status or expressive subject. The order should also prevent the \$240 covered-event assessment insofar as it is triggered only by the inclusion of compensated speakers rather than by neutral park administration applicable to comparable gatherings.

The injunction should expressly preserve neutral rules governing reservation priority, capacity, insurance, sanitation, emergency access, vehicle circulation, structures, accessibility, and competing uses. It should permit the City to request time, duration, format, location, equipment, expected audience, and other information reasonably needed for operations. Any restrictive condition should state the documented fact supporting it and explain why the measure addresses that fact. The Guild will provide accurate updates about material logistical changes.

This scope is limited to the plaintiff, the six identified dates, and the pendency of this litigation. It would not adjudicate permanent relief, grant the Guild priority over an existing reservation, or prevent emergency response. If materially different circumstances arise, either party may seek modification. Because the City has not identified compensable loss from suspension of speaker-specific charges and disclosures, the Guild requests that any Rule 65(c) security be nominal or waived after an express determination.

For these reasons, the Guild respectfully requests a prompt hearing and entry of preliminary relief before the February program is irretrievably fixed. A proposed order accompanies the motion. Counsel certifies that the City received notice and that the parties conferred about interim administration but did not reach agreement. Respectfully submitted January 5, 2026, by counsel for Piedmont Booksellers Guild.